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General Comment

I am not an artist, or author. I am a user, albeit reluctantly, of products presently referred to as "AI."

I think that any policy to foster language and image models should be crafted with great and deliberate care. Recklessness around copyright or trademark, or indeed any generous license to use "training data" without proper consent and provenance, could result in products that are deeply insecure and are banned in other countries.

The United States may find itself so eager to give US technology companies free license to do as they will that the country will effectively eliminate any export potential, thereby ceding the global market to more acceptable products.

Between this and the fostered disregard for privileged information, companies will be less inclined to use such insecure and un-exportable programs.

This is to say nothing of the chilling effect on the creativity and innovation of the American spirit. American creators, authors, and innovators will feel less free to share their creations, for fear of someone else monetizing their hard work and dedicated effort. Intellectual property is a bedrock of American innovation, and shouldn't be sacrificed in a panic induced by industry insiders.

It is the role of government sometimes to dampen the zeal of companies that may do themselves harm in their urgency to compete, the better to sustain a long term healthy competition that lifts all.